

1/19

□

File No: PS/00312/2023

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 22, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A. (hereinafter, the respondent), through the Agreement that is transcribed:

<<

File No: PS/00312/2023

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the claimant), on April 8, 2021, filed a complaint with the Spanish Agency for Data Protection. The complaint was directed, among others, against ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A., with NIF A78839271 (hereinafter, the respondent or ATRESMEDIA). The reasons on which the complaint was based are as follows: The claimant reported that several media outlets had published on their websites the audio of the statement before the judge of a victim of a multiple rape, to illustrate the news related to the trial in a case that was very media-covered. The claimant provided links to the news published on the websites of the complained media.

On May 10, 2021, a new document was received from the claimant stating that they had been able to verify that some media had removed that information, although they attached publications made by some media on Twitter where it was still available.

2/19

SECOND: On May 12, 2021, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

During the investigation actions, publications were found where the voice of the victim could be heard without distortion. For all data controllers, an urgent precautionary measure for the removal of content or distortion of the voice of the participant was issued on May 13, 2021, so that it would be unidentifiable on the web addresses from which this content was accessible.

These aspects were confirmed in relation to the respondent:

- ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A.

***URL.1

***URL.2

***URL.3

On May 17, 2021, a document was received in this Agency from this entity informing that for the first two cases the content had been removed and for the last one, the voice had been distorted; this was verified.

FOURTH: After processing the procedure PS/00190/2022 instructed against ATRESMEDIA, on December 29, 2022, the resolution issued on December 27, 2022, by the Director of the Spanish Agency for Data Protection was notified to said media outlet, by which it was decided to:

“IMPOSE on ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A., with NIF A78839271, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 a) of the GDPR, a fine of 50,000 euros (fifty thousand euros).”

“Confirm the following provisional measures imposed on ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A.:

- Removal or distortion of the voice of the victim from its web addresses, preventing, to the extent that the state of technology allows, the re-uploading or re-loading of exact copies or replicas by the same or other users.
- Removal or modification of the contents in such a way that it makes access and availability of the original by third parties impossible, but guarantees its preservation, for the purpose of safeguarding the evidence that may be necessary in the course of the police or administrative investigation or the judicial process that may be instructed.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/19

FIFTH: Upon receiving a document from ATRESMEDIA on March 23, 2023, it was noted that a computer error had occurred at the time of notification, which affected the text of the resolution made available to that media outlet on December 29, 2022. The resolution received by ATRESMEDIA contained only the first 17 pages of a text totaling 53 pages. Although the text of the resolution signed by the Director of the AEPD was entirely correct, this error had affected the text notified to the media outlet, resulting in it being incomplete.

Consequently, although the resolution issued by the Director of the AEPD on December 27, 2022, was a valid act, it could not be effective, given that the notification made on December 29, 2022, was incomplete and the 9-month period provided for in Article 64 of the LOPGDD had expired.

On May 10, 2023, the Director of the AEPD issued a resolution revoking the resolution of procedure PS/00190/2022 and declaring its expiration.

The aforementioned resolution was notified to ATRESMEDIA on May 11, 2023, and is final in the administrative route, as the one-month period has elapsed without the aforementioned media outlet having filed a voluntary appeal for reconsideration.

SEVENTH: On the date this initiation agreement is issued, the statute of limitations provided for in Article 72 of the LOPDGDD has not expired.

LEGAL GROUNDS

I

Competence

By virtue of the powers that Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) recognizes to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

The voice as personal data

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/19

A person's voice, according to Article 4.1 of the GDPR, is personal data as it makes them identifiable, and its protection is therefore subject to the GDPR:

“‘personal data’: any information relating to an identified or identifiable natural person (‘the data

subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

The voice is a personal attribute unique to each individual, defined by its pitch, intensity, and timbre. Endowed with unique and distinctive traits that directly individualize it, associating it with a specific individual, it is shaped while speaking, allowing one to infer the individual's age, sex, health status, personality, culture, origin, hormonal, emotional, and psychological state. Elements of expression, idiolect, or intonation are also considered personal data when considered together with the voice. Therefore, the report 139/2017 from the Legal Office of this Agency states that "the image as well as the voice of a person is personal data, just as any information that allows determining, directly or indirectly, their identity will be."

In fact, the ruling of the National Court dated March 19, 2014 (rec. 176/2012) states that "a person's voice constitutes personal data, as deduced from the definition provided by Article 3.a) of the LOPD, as 'any information concerning identified or identifiable natural persons,' a matter that is not controversial."

Article 4.2 of the GDPR defines 'processing' as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction."

The inclusion of a person's voice in journalistic publications, which identifies or makes a person identifiable, constitutes processing of personal data and, therefore, the data controller carrying out such processing is obliged to comply with the obligations established for data controllers in the GDPR and the LOPDGDD.

III

Right to data protection

This procedure is initiated because the respondent published, on the websites referred to in the facts, the audio of the statement before the judge of a victim of a multiple rape, to illustrate the news regarding the holding of the trial in a

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/19

This was a highly publicized case. The voice of the victim was clearly heard as she recounted in graphic detail the multiple rapes she suffered. All of this constitutes the processing of the victim's personal data.

Individuals have the power to dispose of their personal data, including their voice, as well as its dissemination, and undoubtedly, a person whose personal data is disseminated in violation of the legal framework deserves protection.

Thus, the Constitutional Court ruling STC 292/2000, of November 30, states that "the content of the fundamental right to data protection consists of a power of disposition and control over personal data that enables the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which this third party may collect, and that also allows the individual to know who possesses that personal data and for what purpose, being able to oppose such possession or use. These powers of disposition and control over personal data, which are part of the content of the fundamental right to data protection, are legally specified in the authority to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on the one hand, the authority to know at all times who has that personal data and what use they are subjecting it to, and, on the other hand, the power to oppose such possession and uses."

In this regard, and regardless of the legal basis legitimizing the processing, every data controller must respect the principles of processing set out in Article 5 of the GDPR. We will highlight Article 5.1.c) of the GDPR, which states that:

“1. Personal data shall be

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');”

However, we are faced with a fundamental right that is not absolute, since, in certain cases, the Fundamental Right to Data Protection may yield to the prevalence of other rights and freedoms that are also constitutionally recognized and protected, such as, for example, the Fundamental Right to Freedom of Information, weighing this on a case-by-case basis.

However, in the present case, as we will explain, it must be considered that the processing carried out by the responding party within the framework of freedom of information has been excessive, as there is no prevailing public interest in the dissemination of the victim's voice—without adding any value to the information by maintaining the victim's real voice (without distortion, for example)—under which pretext it seems that such data has been disclosed; a voice that, combined with the fact that this is a highly publicized case, makes the victim clearly identifiable. When weighing the conflicting interests and considering the concurrent circumstances of this case, namely, the particularly sensitive nature of the personal data and the intense impact on the victim's privacy, the interest of the holder of the right to the protection of her personal data and to not have it disseminated deserves greater protection than the purported public interest in its dissemination.

IV

Right to Information

In the conflict between the Fundamental Rights to Freedom of Information and the Fundamental Right to the Protection of Personal Data, even though equal degrees of protection are recognized for both constitutional rights, the former is usually granted precedence by our courts after evaluating and weighing all the elements at play.

However, preponderance does not mean prevalence when, considering all the concurrent circumstances in a specific case, the limits established by law and jurisprudence are exceeded.

In this sense, the Article 29 Working Party in its Opinion 06/2014 on the concept of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, when examining the legal basis of legitimate interest under Article 7.1.f) of Directive 95/46/EC, fully translatable to the current Article 6.1.f) of the GDPR, includes the right to freedom of expression or information as one of the scenarios in which the issue of legitimate interest may arise, asserting that "without prejudice to whether the interests of the data controller will ultimately prevail over the interests and rights of the data subjects when the balancing test is carried out."

V

Limits to the Fundamental Right to Freedom of Information.

That said, the Fundamental Right to Freedom of Information is also not absolute. We can observe very clear limits established by the courts in the civil sphere, in relation to the Right to Honor, Personal and Family Privacy, and to One's Own Image.

Thus, we will cite, among others, the Constitutional Court ruling STC 27/2020, of February 24, 2020 (amparo appeal 1369-2017), which states, in relation to the image of a person, and starting from the incontrovertible fact that it makes them identifiable, that "...the debated issue is reduced to weighing whether the unauthorized reproduction of the image of an anonymous person, that is, someone who is not a public figure, but who suddenly and involuntarily acquires a role in the newsworthy event, in this case as a victim of the failed murder attempt by their brother and the subsequent suicide of this, constituted an unlawful intrusion into their fundamental right to their own image (art. 18.1 CE).

[...]

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/19

...that criminal events are newsworthy occurrences, even regardless of the private nature of the individual affected by the news. However, the limit lies in the individualization, whether direct or indirect, of the victim, as this information is not of public interest because it lacks relevance for the information that is permitted to be transmitted (SSTC 20/1992, of February 20; 219/1992, of December 3; 232/1993, of July 12; 52/2002, of February 25; 121/2002, of May 20, and 127/2003, of June 30). Thus, this is currently recognized by Law 4/2015, of April 27, on the Statute of the Victim of Crime, in force since October 28, 2015, when it warns of the need "from public authorities [to offer] the broadest possible response, not only legal but also social, to victims, not only repairing the damage within the framework of a criminal process but also minimizing other traumatic effects in moral terms that their condition may generate, all regardless of their procedural situation. Therefore, this Statute, in line with European regulations on the matter and with the demands posed by our society, aims, starting from the recognition of the dignity of victims, to defend their material and moral goods and, with that, those of society as a whole." In cases such as those raised in this appeal, this Court must give relevance to the prevalence of the right to the image of the crime victim over informational freedoms, as the graphic information became idle or superfluous due to the lack of real interest in the transmission of the information, in this case the apparent commission of a homicide and subsequent suicide" (the underlining is ours).

We will add the STS, from its First Civil Chamber, 272/2011 of April 11, 2011 (rec. 1747/2008), which, regarding the necessary data to provide information and the limits to public interest, states that "b) Trivial information is not protected (ATC 75/2006), but the act of providing unnecessary data in a case of rape (the full name, the initials of the surnames, the street address where the victim lived) that have no community relevance, do not respect privacy, only seek to satisfy curiosity, cause disturbances or discomfort, and unnecessarily reveal aspects of personal and private life, allowing neighbors, close individuals, and family members to fully identify the victim and gain detailed knowledge of a seriously harmful act against their dignity (STC 185/2002) or about an illness that has no public interest and directly affects the irreducible sphere of intimacy and is revealed for the sake of a mere joke or jest (STC 232/1993);".

Likewise, the STS, from its First Civil Chamber, Judgment 661/2016 of November 10, 2016 (rec. 3318/2014), regarding the capture and dissemination in court of the image of a victim of gender violence, ruled that "1.^a) The interest of the questioned information or the right of the defendant television channel to broadcast images recorded during the oral trial of the criminal case is not disputed, as there is no limitation in this regard agreed upon by the judicial body.

2.^a) The only contentious point is, therefore, whether the identification of the plaintiff as a victim of the crimes adjudicated in that criminal case, through close-ups of her face and the mention of her first name and place of residence, was also included in the fundamental right of the defendant television channel to transmit truthful information or, on the contrary, was limited by the...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/19

fundamental rights of the claimant to personal privacy and to their own image.

3.^a) Regarding this issue, the jurisprudence has recognized the general interest and public relevance of information about criminal cases (ruling 547/2011, of July 20), which is heightened in cases of physical and psychological abuse (rulings 128/2011, of March 1, and 547/2011, of July 20). However, it has also specified, concerning the identification of the individuals involved in the trial, that the accused and the victim are not on equal footing, as complete identification is permissible for the former, and not just by their initials, due to the nature and social significance of the crimes of abuse (ruling 547/2011, of July 20).

[...]

6.^a) In conclusion, the defendant television channel should have acted with the prudence of a diligent professional and avoided broadcasting images that depicted the appellant in close-up, either by refraining from airing the corresponding footage or by using technical procedures to blur their features

and prevent recognition (ruling 311/2013, of May 8). Likewise, it should have avoided mentioning their first name, as this information, insufficient on its own to constitute an unlawful intrusion, became relevant when pronounced on screen simultaneously with the image of the claimant and when the mention of their place of residence was added—data that were all unnecessary for the essence of the content of the information, as demonstrated by the news about the same trial published the following day in other media.

7.^a) The identification of the claimant through their image and the indicated personal data, and its direct connection to an episode of gender violence and other serious crimes, when the simultaneous or subsequent revelation of data regarding how the victim and their aggressor met and the manner in which the criminal acts occurred was foreseeable, implies that the loss of anonymity violated both the claimant's right to their own image, due to the broadcast of their physical features, and their personal and family privacy, to the extent that certain reserved data pertaining to their private life (such as having gone online to start a relationship or the intimate content of some of their conversations), which lacked offensive significance in a situation of anonymity, acquired such significance from the moment any person watching those news programs and residing in the victim's locality could know to whom they were referring. Thus, the psychological harm inherent in their condition as a victim of crimes was compounded by the moral harm consisting of the disclosure of private life data that they had not consented to make public.” (the emphasis is ours).

As we can see, there is a clear reference to the excessive treatment of personal data (some of which are not of an intimate nature) to provide the information, considering them entirely unnecessary given the concurrent circumstances. Sometimes the courts refer to intimate data, but at other times it concerns personal data that are not intimate, such as, for example, the image of a physical person obtained from a photograph published on a social network or their first and last names.

VI

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/19

Balance between the Fundamental Right to Freedom of Information and the Fundamental Right to the Protection of Personal Data.

In the specific case examined, as we have indicated, the party being claimed published, on the websites referred to in the facts, the audio of a statement made before the judge by a victim of a multiple rape, to illustrate the news of a highly publicized case.

Thus, it is not a matter, as in other jurisprudentially examined cases, of giving precedence to one fundamental right over another, having to choose which one carries more weight in a specific case.

Rather, it is about finding a balance between both in order to achieve the purpose of the former without distorting the latter. The reconciliation of both rights is nothing new, since the European legislator mandates such reconciliation in Article 85 of the GDPR.

As we have seen previously, the Fundamental Right to Freedom of Information is not unlimited, since the jurisprudential interpretation when confronting it with other rights and freedoms does not allow it in every case and to every extent, but rather, the prevalence that courts usually grant it can be limited by other fundamental rights that must also be respected. This limitation is observed when the personal data provided was unnecessary for the essence of the content of the information.

We must consider the special circumstances present in the examined case. It involves a very young woman who has suffered a multiple rape. In the published recording, she can be heard recounting, with great emotional weight, the sexual assault suffered in all its harshness, narrating (...).

Furthermore, we cannot lose sight of the victim's condition, whose voice, with all the nuances expressed, has been disseminated.

Let us recall, for merely illustrative purposes, that Law 4/2015, of April 27, on the Statute of the Victim of Crime provides for a special need for protection for victims of crimes against sexual freedom or sexual integrity, as well as victims of violent crimes, both circumstances that apply in the examined case.

In this case, the situation of the victim (who is not on the same level of equality as the accused) must be considered, as well as what the dissemination of her voice with all its nuances implies, along with the special protection that the legal system must provide her, which, without constraining the provision of information, must be compatible with the principle of data minimization, applicable to the manner, the medium in which the information is provided and disseminated due to the immediate impact on the personal data and the identification of the victim.

Precisely because the evident public interest in the news is not denied, given the general interest in criminal cases, in this specific case, it is not a matter of diminishing the Fundamental Right to Freedom of Information by the prevalence of the Fundamental Right to the Protection of Personal Data, but rather of

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
10/19

to make them fully compatible so that both are absolutely guaranteed. That is, the freedom of information of the media is not called into question, but rather the balancing with the right to data protection based on the proportionality and necessity of publishing the specific personal data of the voice. Such a situation could have been resolved by using technical procedures to prevent voice recognition, such as, for example, distorting the victim's voice or transcribing the account of the multiple rape, both security measures, applied depending on the case, ordinarily by the media. Furthermore, we must emphasize that the victim is an anonymous person, and our Constitutional Court, in STC 58/2018 of June 4, states that public authorities, public officials, and public figures or those engaged in activities that involve public notoriety "voluntarily accept the risk that their subjective personal rights may be affected by criticism, opinions, or adverse revelations and, therefore, the right to information reaches, in relation to them, its maximum level of legitimizing effectiveness, in that their life and moral conduct participate in the general interest with greater intensity than that of private individuals who, without a vocation for public projection, are circumstantially involved in matters of public significance, to whom, consequently, a higher sphere of privacy must be recognized, which prevents granting general significance to facts or conduct that would have it if referred to public figures."

The CJEU (Second Chamber) ruling of February 14, 2019, in case C 345/17, *Sergejs Buivids*, mentions various criteria for weighing the right to respect for privacy against the right to freedom of expression, among which are "the contribution to a debate of general interest, the notoriety of the affected person, the subject of the report, the previous behavior of the interested party, the content, the form and the repercussions of the publication, the manner and circumstances in which the information was obtained and its veracity (see, in this sense, the judgment of the ECHR of June 27, 2017, *Satakunnan Markkinapörssi Oy and Satamedia Oy v. Finland*, CE:ECHR:2017:0627JUD000093113, paragraph 165)."

Thus, for a matter to be considered of general interest, of public relevance, it must be so not only because of the person involved but also because of the subject matter to which it refers. Both requirements must be met, resulting, further to what was stated in the previous section, that in the case examined, the victim is not a public person; rather, it is of great interest that they are not recognized by third parties, as this could imply a new penalty to that already suffered. The victim is an anonymous person and must remain so, in such a way that their fundamental rights are fully guaranteed.

In the present case, (i) we are neither dealing with a person of public relevance, in the sense that such relevance is sufficient to understand that it entails, *ex lege*, a dispossession of their fundamental right to the protection of their personal data, and (ii) while we are dealing with "facts of public relevance," in the sense that they are revealed as "necessary" for the exposition of ideas or opinions of public interest, that necessity does not extend to providing data that identifies the victim.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid

Therefore, and as the Supreme Court expresses in its ruling (civil) 697/2019, dated December 19, 2019, the formation of a free public opinion does not require, nor justifies, affecting the fundamental right to one's own image [in this case, the protection of personal data] with such severity and in a manner that does not maintain the necessary connection with the identification of the person subject to the information.

It is worth mentioning the non-compliance with point 1 of the Digital Pact for the protection of individuals, signed by the involved entities, which establishes that "The signatories of the Charter will refrain from identifying in any way the victims of assaults, violent acts, or sexual content in their information or from publishing information from which, in general terms, their identity can be inferred when it concerns individuals without public relevance. All this without prejudice to the fact that non-public individuals may be involved in newsworthy events, in which case the news coverage will be the necessary one to adequately fulfill the right to information, taking into account the peculiarities of each case."

VII

Every data controller has obligations regarding data protection, as prescribed in the GDPR and the LOPDGDD, highlighting, in terms of our interest, the proactive responsibility, Article 5.2 of the GDPR, the assessment of risks, and the implementation of appropriate security measures. Obligations that are even more relevant when, as in the case we are examining, it is particularly sensitive.

Such obligations do not diminish because we are dealing with a data controller that is a media outlet. If we combine the dissemination of the victim's voice (with all its nuances), which makes them identifiable and potentially recognizable by third parties, with the factual account they provide regarding the violation suffered, there is a very high and probable risk that they may suffer harm to their rights and freedoms. This has occurred in other cases of dissemination of personal data of victims of rape. Moreover, with the dissemination of the victim's voice, they are being condemned again to be recognized by third parties, which is neither a proportional nor necessary treatment in relation to the information purposes pursued.

It is extremely significant that, in the examined case, the respondent party immediately withdrew the recording of the hearing in which the victim's voice was disseminated at the request of the AEPD in two cases and distorted the victim's voice in the third, notwithstanding which the information remains available and continues to be provided in all its breadth. This demonstrates that to provide this specific information, it was not necessary, in the terms of Article 5.1.c) of the GDPR, to disseminate the victim's voice.

VIII

Excessive data processing

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the respondent party has processed data that was excessive as it was not necessary for the purpose for which it was processed. The known facts could constitute an infringement, attributable to the respondent party, of Article 5.1.c) of the GDPR, with the scope expressed in the previous Legal Grounds, which, if confirmed, could imply the commission of the infringement typified in Article 83.5, paragraph a) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states that:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; In this regard, the LOPDGDD, in its Article 71 establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 72 of the LOPDGDD indicates:

Article 72. Very serious infringements.

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

IX

Typification of the infringement

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/19

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation referred to in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.”

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j).

In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringements committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/19

Regarding item k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, "Sanctions and corrective measures," provides:

"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The link of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject."

In an initial assessment, the following concurrent aggravating criteria are estimated:

- Aggravating factors:

- Article 83.2.a) of the GDPR:

Nature, gravity, and duration of the infringement: The nature of the infringement is considered very serious as it entails a loss of disposition and control over the personal data of a person who has been a victim of a violent crime and against sexual integrity, and by disseminating such personal data, there was a certain risk that they could be recognized by third parties, with the serious damage and harm this would cause.

- Article 83.2.b) of the GDPR.

Intentionality or negligence in the infringement: Although the Agency considers that there was no intentionality on the part of the media outlet, the Agency concludes that it was negligent in not ensuring a procedure that guaranteed the protection of the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/19

personal data in such sensitive circumstances, especially when in many cases the voice in the news is distorted in order not to recognize the person speaking.

-

Article 83.2.g) of the GDPR.

Categories of personal data affected by the infringement: The certain possibility of recognizing the victim of a crime as reported in the news, very serious, violent, and against sexual integrity (multiple rape), poses a serious harm to the affected individual, as what happened is linked to their sexual life. The amount of the fine that would correspond, without prejudice to what results from the instruction of the procedure, is €50,000 (fifty thousand euros).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A, with NIF A78839271, for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 a) of the GDPR.

SECOND: To confirm the following provisional measures imposed on ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A:

- Removal or distortion of the victim's voice from its web addresses, preventing, to the extent that the state of technology allows, the re-uploading or reloading of exact copies or replicas by the same or other users.
- Removal or modification of the content in such a way that it prevents third parties from accessing and disposing of the original, but guarantees its preservation, for the purpose of safeguarding the evidence

that may be necessary during the course of the police or administrative investigation or the judicial process that may be instructed.

THIRD: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

FOURTH: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FIFTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 a) of that regulation, an administrative fine of €50,000.00 (fifty thousand euros), without prejudice to what results from the instruction.

SIXTH: TO NOTIFY this agreement to ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A, with NIF A78839271, granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document. If it does not make allegations against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €40,000.00 (forty thousand euros), resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €40,000.00 (forty thousand euros) and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €30,000.00 (thirty thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (€40,000.00, forty thousand euros, or €30,000.00, thirty thousand euros), it must make it effective by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/19

Furthermore, you must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount paid.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance

with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive notice of the availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal can be made against this act.

935-290523

Mar España Martí

Director of the Spanish Agency for Data Protection

>>

SECOND: On July 5, 2023, the respondent has proceeded to pay the fine in the amount of 30,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/19

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or waiver of any action or

administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure PS/00312/2023, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to ATRESMEDIA CORPORACIÓN DE MEDIOS DE COMUNICACIÓN, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

936-040822

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es